

MagicCode Super-Resolution Software End User License Agreement (EULA)

Effective Date: December 1, 2025

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- Using modified or pirated versions of the Software, or using the Software in conjunction with any third-party software that disrupts its normal functionality or circumvents license restrictions.

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This Agreement shall remain in effect from the date you first use the Software until it is terminated in accordance with the terms herein. MagicCode may terminate this Agreement immediately if you materially breach any term of this Agreement (e.g., unauthorized commercial use, infringement, reverse engineering). Upon termination, you must immediately cease all use of the Software, uninstall it from all your devices, and delete any copies of the Software in your possession. Sections 2 (Intellectual Property Rights), 5 (Disclaimer of Warranties), 6 (Limitation of Liability), and 7 (Governing Law) shall survive the termination of this Agreement.

5. Disclaimer of Warranties and Liabilities

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You acknowledge and agree that the super-resolution technology of the Software is based on current image processing algorithms, and its effect is limited by the quality, resolution, and content characteristics of the input image. MagicCode shall not be liable for any of the following: (a) Insufficient enhancement effect caused by low-quality input images (e.g., blurry, noisy, or heavily compressed original content); (b) Loss of detail or distortion of the super-resolved content due to the limitations of the

algorithm itself; (c) Inaccuracy or incompleteness of the super-resolved content when used for professional scenarios (e.g., medical imaging, precision measurement), as the Software is not designed for professional-grade accuracy requirements.

5.3 Disclaimer of Third-Party Risks

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You are solely responsible for backing up the original images/videos before using the Software, as MagicCode shall not be liable for any loss or damage to the original content caused by improper operation, software exceptions, or device failures during the super-resolution process. You shall independently evaluate the risks of using the Software and bear all consequences arising from such use, including but not limited to business losses, reputation impacts, or legal liabilities.

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You agree to indemnify and hold harmless MagicCode, its directors, officers, employees, and licensors from and against any claims, damages, liabilities, costs, and expenses (including reasonable attorney's fees) arising out of your use of the

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MagicCode may provide updates, upgrades, patches, or new versions of the Software ("Updates") from time to time to improve performance, fix bugs, or add new features. These Updates may be provided automatically or require your manual download and installation, depending on the platform. By accepting any Update, you agree to be bound by any additional terms or changes to this Agreement that may accompany the Update. If you do not agree to the terms of an Update, you may refuse to install it, but this may result in the Software functioning improperly or being unable to use certain features.

8. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the jurisdiction where MagicCode's principal place of business is located (currently [Jurisdiction], [Country]), excluding its conflict of laws principles.

Any dispute, controversy, or claim arising out of or relating to this Agreement or the use of the Software shall first be resolved through good-faith negotiation between you and MagicCode. If the dispute cannot be resolved through negotiation within 30 days, either party may submit the dispute to arbitration in accordance with the arbitration rules of the [Arbitration Institution] in [City, Country]. The arbitration award shall be final and binding on both parties. For users residing in jurisdictions where arbitration is not enforceable, disputes may be submitted to the competent courts in [Jurisdiction], [Country].

9. Miscellaneous

- **Entire Agreement:** This Agreement constitutes the entire and exclusive agreement between you and MagicCode regarding the Software, superseding all prior or contemporaneous agreements, communications, and understandings (whether oral or written) relating to the subject matter herein.
- **Amendments:** MagicCode may modify this Agreement from time to time. We will notify you of material changes by posting the updated Agreement on our official website, sending a notification via the Software, or other reasonable means. Your continued use of the Software after the effective date of the modified Agreement constitutes your acceptance of the changes.
- **Severability:** If any provision of this Agreement is deemed invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall remain in full force and effect.
- **Assignment:** You may not assign or transfer this Agreement or any of your rights or obligations herein without the prior written consent of MagicCode.

MagicCode may assign this Agreement to any third party in connection with a merger, acquisition, or sale of all or substantially all of its assets, or as otherwise permitted by law.

10. Contact Information

If you have any questions, concerns, or requests regarding this Agreement, please contact us at:

- Legal Department Email: legal@magiccode-ai.com
- Official Website: www.magiccode-ai.com